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The Minister of Justice and Security  
Ms. Drs. D. Yeşilgoz-Zegerius  
P.O. Box 20301  
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Date  
February 26, 2024  
Our reference  
z2023-298540  
Your letter dated  
November 6, 2023

Contact person

Your reference  
5017936

Subject

Advice on the draft bill for the Act to improve the approach to driving under the influence

Dear Ms. Yeşilgoz,

In your letter dated November 6, 2024, the Authority for Personal Data (AP) was consulted pursuant to Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft bill for the Amendment of the Road Traffic Act 1994 and the Code of Criminal Procedure in relation to replacing the recidivism regulation for serious traffic offenses and introducing various measures aimed at a better approach to driving under the influence.

The assessment of the personal data aspects of the draft gives the AP reason to make a comment.

Scope of the draft

The bill aims to improve the criminal law approach to drivers participating in traffic under the influence of alcohol or drugs, or a combination thereof. To this end, the bill includes an amendment to the Road Traffic Act 1994 (hereinafter: WVV) and the Code of Criminal Procedure (hereinafter: Sv).

The main change concerns the proposal to replace the current recidivism regulation for serious traffic offenses (Article 123b WVV) with a package of criminal law measures, including creating a power for the judge to declare the driver's license invalid for all categories for which it has been issued and for the remaining duration of the validity of that driver's license when imposing a disqualification from driving (Article 179b WVV new). Since the invalidation is part of the disqualification from driving, it ensures that the convicted individual cannot obtain a new driver's license for a certain period. If the judge decides in an individual case to declare the driver's license of the convicted individual invalid, that invalidation will be recorded in the driver's license register (see current Article 126, paragraph 3, subparagraph h, WVV). This registration replaces the registration of the application of the recidivism regulation.

Advice

Data protection paragraph

In paragraph 4.3.2. (Invalidation as part of the disqualification from driving) of the explanatory memorandum to the draft, the last two paragraphs address aspects related to the processing of personal data associated with the proposed measure regarding the judicial invalidation of the driver's

license. According to the explanatory memorandum, the system of judicial invalidation of the driver's license represents a lesser form of processing of criminal data than is currently the case under the existing recidivism regulation. It is argued that, in the implementation of the recidivism regulation, criminal data is already being processed in the driver's license register (Article 126, paragraph 3, subparagraph f, of the WVW and Article 145, paragraph 1, subparagraph n, of the Regulation on Driver's Licenses). Furthermore, the explanatory memorandum mentions that in the provision of criminal personal data following a judicial invalidation imposed by the criminal court, the data is provided directly by the Public Prosecution Service to the CBR and that the data is not recorded in the driver's license register.

Pursuant to Article 36, paragraph 4, GDPR, the AP must be consulted for advice on a legislative proposal or regulatory measure based on it that relates to the processing of personal data. The purpose of this is for the AP to assess whether the proposed measure complies with the GDPR and to mitigate risks for the data subject. To make this assessment, it is important that the draft and the explanatory memorandum clearly indicate the consequences of the proposed measure for the processing of personal data and provide accountability for the considerations made between the aim of the proposed measure on the one hand and the right to protection of personal data and the right to privacy on the other hand.

The explanatory memorandum to the draft does not contain a separate data protection paragraph addressing the consequences of the proposed measure (judicial invalidation of the driver's license) for the processing and protection of personal data. According to the draft, it is intended that this proposed measure will replace the current recidivism regulation for serious traffic offenses. To gain a clear understanding of the consequences for the protection of personal data, it is important to clarify what exactly changes with the proposed measure regarding the associated processing of personal data compared to the current regulation.

The AP advises that the explanatory memorandum to the draft includes a separate paragraph on data protection that provides a clear account of the consequences of the proposed measure for the processing of personal data in comparison with the current regulation, indicating what considerations have been made in this regard.

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3/3

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

Disclosure

This advice will be published on the AP's website within two weeks.

Yours sincerely,

Authority Personal Data,

Aleid Wolfsen

Chairman